

Arunaba vs Tusharsinh on 24 November, 2010

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Bench: Ks Jhaveri

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MCA/2542/2010 3/ 3 ORDER

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

MISC.CIVIL
APPLICATION - FOR TRANSFER No. 2542 of 2010

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ARUNABA
W/O TUSHARSINH MAHENDRASINH ZALA D/O JAYENDRASINH DA - Applicant(s)

Versus

TUSHARSINH
MAHENDRASINH ZALA - Opponent(s)

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Appearance :
MR
PP MAJMUDAR for
Applicant(s) : 1,
RULE SERVED for Opponent(s) : 1,
MR NEERAJ
SONI for Opponent(s) :
1,
=====

CORAM

:

HONOURABLE

MR.JUSTICE KS JHAVERI

Date

: 24/11/2010

ORAL

ORDER

1. Heard Mr Majmudar learned advocate for the applicant and Mr Neeraj Soni Assistant Government pleader for the opponents.
2. The applicant has prayed to transfer the proceedings of case being H.M.P NO. 24 of 2009 pending before learned Additional Senior Civil Judge, Viramgam, Ahmedabad (rural) to the competent court at Vadodara District.
3. The present applicant married with the opponent on 3rd February 2006 at Vasad. It is alleged that the applicant was harassed by her in-laws and without her consent got a divorce on 12th July 2007. The applicant preferred a civil suit being Civil Suit No. 73 of 2007 praying that the marriage of opponent NO. 1 with the applicant may be declared to be legal and the divorce deed dated 12th February 2007, which is entered into between the present applicant and opponent No. 2 due to threats given by opponents may be declared to be void and ineffective. The said suit is pending before learned Principal Civil Anand.
4. The present applicant has also filed Hindu Marriage Petition No. 187 of 2007 before Principal Senior Civil Judge, Vadodara under section 9 of the Hindu Marriage Act for restitution of conjugal rights. In the said HMP NO. 187 of 2007 a monthly maintenance of Rs 3,000/- is ordered to be paid.

5. In view of the above the present application has been filed. The opponent has filed H.M.P No. 24 of 2009 under section 29(2) of the Hindu Marriage Act before learned Civil Judge (S.D) Ahmedabad (Rural) which is pending.

5. Learned advocate for the applicant has averred that the applicant is not a well to do person and it is difficult to her to travel all the way from village Jaspur, Dist. Vadodara to Viramgam to attend the case filed by the opponent herein. She is finding it difficult to travel such a long distance all by herself and she also has to incur huge expenses for traveling as well as for taking legal assistance in Viramgam. The opponent in fact is residing in Anand only with a view to harass the present applicant he has filed the aforesaid proceedings at Viramgam.

5. Having considered all the facts and circumstances and looking to the difficulties experienced by the applicant this application is allowed. The Hindu Marriage Petition No. 24 of 2009 is pending before the learned Additional Senior Civil Judge, Viramgam, Ahmedabad shall be transferred to competent court at Vadodara. Rule is made absolute accordingly with no order as to costs.

(K.S.Jhaveri,J.) mary//